

- (iii) change the level between ground floor private courtyards and adjacent communal/public areas.
- (g) Landscaping should not be relied on as the sole protection against overlooking.
- (h) In areas undergoing change, the impact on what is likely to be built on adjoining sites, as well as the existing development, should be considered.
- (i) Roof tops may be used as trafficable roof-top terrace areas to meet communal open space requirements for residential flat building, mixed use and shop top housing development provided the following requirements are met:
 - (i) The rooftop will not result in unreasonable amenity impacts such as overlooking and unacceptable noise;
 - (ii) The trafficable area is distanced from the edge of the rooftop with permanent planter boxes or the like of sufficient size to mitigate unreasonable overlooking;
 - (iii) They satisfy the considerations of the Privacy Planning Principle from 2Super Studio v Waverley Council [2004] NSWLEC 91 at 5-7;
 - (iv) Access hoods and stairs should be designed and sited to avoid obstructing views and producing adverse visual impacts.
 - (v)
 - (vi) The development does not contain a boarding house, co-living development or tourist and visitor accommodation; and
 - (vii) Other controls within this Part C2 are met.